

CONTRACT NO. _____

CONTRACT EMPLOYMENT AGREEMENT

THIS AGREEMENT, made and entered into this ____ day of _____, 2013, by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, acting by and through its political subdivision, the Cheyenne Police Department, hereinafter referred to as the "Department," and Ashley McNelly, hereinafter referred to as "McNelly."

WITNESSETH:

WHEREAS, the Department is a law enforcement agency serving the City of Cheyenne, and is a department thereof; and

WHEREAS, the Department has received a grant of funds from the Wyoming Division of Victim Services for the purpose of providing crime victim assistance services; and

WHEREAS, in order to provide crime victim assistance services, the Department desires to retain the services of a "Victim Assistance Advocate;" and

WHEREAS, because funding a Victim Assistance Advocate position is dependent on the receipt of a grant, the Department wishes to create a contract employee rather than permanent employee position; and

WHEREAS, McNelly has training and experience in the field of assisting crime victims; and

WHEREAS, McNelly desires to provide services to the Department under the terms and conditions hereinafter contained.

NOW, THEREFORE, in consideration of the promises and mutual covenants herein, the parties agree as follows:

1. The term of this Agreement shall commence July 1, 2013, and terminate June 30, 2014, unless sooner terminated pursuant to Section 9 below or if grant funding is no longer available.

2. McNelly will be considered a contract employee of the Department. She will act as a Victim Assistance Advocate and assist the Department.

3. McNelly shall at all times coordinate her activities hereunder with the Department and shall work under the direction of the Department.

4. The Department agrees to pay McNelly the sum of Two Thousand Two Hundred Fifteen Dollars and Forty-Three Cents (\$2,215.43) per month. The total amount over the term of this agreement will not, in any event, exceed the sum of Twenty-Six Thousand Five Hundred Eighty-Five Dollars and Sixteen (\$26,585.16).

5. The Department shall provide McNelly the benefits provided to full-time employees of the City of Cheyenne. The City of Cheyenne will withhold appropriate federal income and social security taxes and remit them to the federal government.

6. In addition to the compensation set forth above, the Department agrees to pay McNelly for hours worked in excess of forty hours in a work week at time and one-half rate.

7. In the event that the governing body authorizes a bonus to be paid to city employees, McNelly would be eligible to receive a bonus similar to other city employees. Such bonus payment shall first be made out of grant funds, if available, then out of Department funds, if grant funds are not available.

8. McInelly is subject to the City of Cheyenne Personnel Rules and Regulations, all federal and state laws, city ordinances and actions of the city's governing body pertaining generally to city employees, except that McInelly shall not be entitled to the procedural protections set forth in the following sections of the City's personnel rules: Chapter XII, Section 3.B, last sentence; Chapter XII, Section 3.C.1, second paragraph; Chapter XII, Section 3.C.2; Chapter XII, Section 3.D; Chapter XIII; and Chapter XIV, Section 2.B-D. Because this contract is for one year and because the funding for the position is dependent on grant funding, McInelly is not a permanent employee of the City of Cheyenne. It is mutually understood and agreed that McInelly is employed on an "at will" basis and that her employment may be terminated by the Department, with or without cause.

9. This Agreement may be terminated by the Department, with or without cause.

10. McInelly agrees to comply with all applicable federal, state and local laws, rules and regulations in the performance of this Agreement.

11. If any provision, section, subsection, sentence, clause or phrase of this Agreement is invalidated by any court of competent jurisdiction, the Agreement will automatically terminate.

12. All parties acknowledge full opportunity for consultation with legal counsel regarding this Agreement, or have consulted with legal counsel.

13. The City of Cheyenne and the Department do not waive their sovereign immunity by entering into this Agreement and fully retain all immunities and defenses provided by law in respect to any action based on or occurring as a result of this Agreement.

14. This Agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties have hereunder set their hands and seals the day and year first above written.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

CHEYENNE POLICE DEPARTMENT

BY:

Brian Kozak, Chief of Police

Ashley McInelly